

DATA PROCESSING ADDENDUM

This Data Processing Addendum (“**DPA**”) forms part of and is incorporated into the agreement between Fireworks.ai, Inc. (“**Company**”) and the business customer that has entered into or is otherwise bound by the applicable terms of service or other written agreement governing the Customer’s use of the Services (the “**Agreement**”). To the extent Company processes Personal Data on behalf of Customer in connection with the Services, this DPA sets forth the Parties’ respective rights and obligations regarding such processing. In the event of a conflict between this DPA and the Agreement, this DPA shall control.

1. DEFINITIONS

1.1 Capitalized terms used but not defined within this DPA will have the meaning set forth in the Agreement. The following capitalized terms used in this DPA will be defined as follows:

"Administration Data" means

- (a) contact details relating to, and the content of correspondence with Customer's main account holder or administrator; and
- (b) support enquiries submitted by Customer's authorized users in relation to the Service.

"Affiliate" means: (a) an entity of which a party directly or indirectly owns fifty percent (50%) or more of the stock or other equity interest; (b) an entity that owns at least fifty percent (50%) or more of the stock or other equity interest of a party; or (c) an entity which is under common control with a party by having at least fifty percent (50%) or more of the stock or other equity interest of such entity and a party owned by the same person, but such entity shall only be deemed to be an Affiliate so long as such ownership exists.

"Applicable Data Protection Laws" means all applicable laws, rules, regulations, and governmental requirements relating to the privacy, confidentiality, or security of Personal Data, as they may be amended or otherwise updated from time to time, under the European Data Protection Laws and US Data Protection Laws.

"Controller Purposes" means: (a) administering Company's relationship with Customer under the Agreement, including maintaining and servicing accounts on the Services; (b) monitoring, investigating, preventing and detecting fraud, security incidents and other misuse of the Services; (c) complying with legal or regulatory obligations applicable to the processing and retention of Personal Data to which Company is subject; and (d) monitoring the performance of the Services to identify and repair errors; (e) undertaking internal research for technological development, including testing, improving, developing and altering the functionality of the Services and developing new products and services.

"Covered Data" means Personal Data that is: (a) provided by or on behalf of Customer to Company in connection with the Services; or (b) obtained, developed, produced or otherwise Processed by Company, or its agents or subcontractors, for the purposes of providing the Services, in each case as further described in Schedule 1.

"Data Subject" means a natural person whose Personal Data is Processed.

"Deidentified Data" means data created using Covered Data that cannot reasonably be linked to such Covered Data, directly or indirectly.

"European Data Protection Laws" means data protection and privacy laws and regulations of Europe applicable to Company's provision of the Services under the Agreement, including where applicable (a) the General Data Protection Regulation 2016/679 ("**GDPR**"); (b) the GDPR as saved into United Kingdom law by virtue of section 3 of the United Kingdom's European Union (Withdrawal) Act 2018 and the Data Protection Act 2018 (together, "**UK GDPR**"); and (c) the Swiss Federal Data Protection Act and its implementing regulations ("**Swiss Data Protection Act**"); in each case, as amended, superseded or replaced from time to time.

"Personal Data" means any data or information that: (a) is linked or reasonably linkable to an identified or identifiable natural person; or (b) is otherwise "personal data", "personal information", "personally identifiable information", or similarly defined data or information under Applicable Data Protection Laws.

"Processing" means any operation or set of operations which is performed on Personal Data or on sets of Personal Data, whether or not by automated means. "**Process**", "**Processes**" and "**Processed**" will be interpreted accordingly.

"Prohibited Personal Data" means: (a) "personal health information," as defined under the Health Insurance Portability and Accountability Act, unless you have entered into a separate agreement with us relating to the processing of such data; or (b) payment card data, including credit card or debit card numbers.

"Security Incident" means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or unauthorized access to (including unauthorized internal access to), Covered Data.

"Services" means the services to be provided by the Company to the Customer under the Agreement.

"Standard Contractual Clauses" or "**SCCs**" means the Standard Contractual Clauses annexed to the Commission Implementing Decision (EU) 2021/914.

"Sub-processor" means, with respect to any Processing performed by Company as a processor or service provider, an entity appointed by Company to Process Covered Data on its behalf.

"Swiss Data Protection Laws" means the Swiss Federal Act on Data Protection of 25 September 2020 ("**FADP**") and the Swiss Data Protection Ordinance of 31 August 2022 (the "**Ordinance**"), and any new or revised version of these laws that may enter into force for time to time.

"US Data Protection Laws" means all applicable federal and state laws rules, regulations, and governmental requirements relating to data protection, the Processing of Personal Data, privacy and/or data protection in force from time to time in the United States, including (without limitation): the CCPA, the Virginia Consumer Data Protection Act, Code of Virginia Title 59.1 Chapter 52 § 59.1-571 *et seq.*, the Colorado Privacy Act, Colorado Revised Statute Title 6 Article 1 Part 13 § 6-1-1301 *et seq.*, the Utah Consumer Privacy Act, Utah Code § 13-6-101 *et seq.*, Connecticut Senate Bill 6, An Act Concerning Personal Data Privacy and Online Monitoring (as such law is chaptered and enrolled).

"Usage Data" means diagnostic, usage and performance information collected by the Company in relation to Customer's and its authorized users' use of the Services. For the sake of clarity, the definition of Usage Data does not include Customer prompts, model inputs, or outputs (each of which is considered Covered Data hereunder).

- 1.2 The terms "**controller**", "**processor**", "**business**" and "**service provider**" have the meanings given to them in the Applicable Data Protection Laws.

2. INTERACTION WITH THE AGREEMENT

This DPA is incorporated into and forms an integral part of the Agreement. This DPA supplements and (in case of contradictions) supersedes the Agreement with respect to any Processing of Covered Data.

3. ROLE OF THE PARTIES

The Parties acknowledge and agree that:

- (a) save as set out in paragraph 3(b), Company acts as a processor or service provider in the performance of its obligations under the Agreement and this DPA and Customer acts as a controller or business; and
- (b) for the purposes of the GDPR, Company acts as a controller with respect to the Processing of Administration Data and Usage Data for the Controller Purposes.

4. DETAILS OF DATA PROCESSING

- 4.1 The details of the Processing of Personal Data under the Agreement and this DPA (including subject matter, nature and purpose of the Processing, categories of Personal Data and Data Subjects) are described in the Agreement and in Schedule 1 to this DPA.

- 4.2 Company shall comply with its obligations under Applicable Data Protection Laws. Save with respect to any Processing of Administration Data and Usage Data for the Controller Purposes, Company will only Process Covered Data on behalf of and under the instructions of Customer and in accordance with Applicable Data Protection Laws.
- 4.3 The Agreement and this DPA shall constitute Customer's instructions for the Processing of Covered Data. Customer may issue further written instructions in accordance with this DPA. Without limiting the foregoing, Company is prohibited from:
- (a) selling Covered Data or otherwise making Covered Data available to any third party for monetary or other valuable consideration;
 - (b) sharing Covered Data with any third party for cross-context behavioural advertising;
 - (c) retaining, using, or disclosing Covered Data for any purpose other than for the business purposes specified in the Agreement or as otherwise permitted by Applicable Data Protection Laws;
 - (d) retaining, using, or disclosing Covered Data outside of the direct business relationship between the Parties; and
 - (e) except as otherwise permitted by Applicable Data Protection Laws, combining Covered Data with Personal Data that Company receives from or on behalf of another person or persons, or collects from its own interaction with the Data Subject.
 - (f) using Covered Data to train, fine-tune, or otherwise improve any shared or foundational model.
- 4.4 Company will:
- (a) provide Customer with reasonable and appropriate information to enable Customer to conduct and document any data protection assessments required under Applicable Data Protection Laws;
 - (b) promptly inform Customer if, in its opinion, an instruction from Customer infringes the Applicable Data Protection Laws; and
 - (c) limit access to Covered Data to personnel who have a business need to have access to such Covered Data, and will ensure that such personnel are subject to obligations at least as protective of the Covered Data as the terms of this DPA and the Agreement.
- 4.5 Except as described below, Company shall not retain Customer's prompt inputs or model outputs beyond the lifecycle of the applicable request. The foregoing obligation applies when Customer uses the Services in accordance with Company's Zero Data Retention configuration and usage documentation, as updated from time to time (available at

docs.fireworks.ai). Customer is responsible for ensuring its configuration of the Services remains consistent with the then-current documentation. Notwithstanding the foregoing, Customer acknowledges that certain Service features require transient or persistent data handling, including: (a) use of the Response API unless configured with store=false; and (b) use of prompt caching. When Customer enables such features, input and output data may be retained for the duration required to fulfil those features.

5. COMPLIANCE

5.1 Customer shall comply with its obligations as a controller, business or equivalent term under the Applicable Data Protection Laws, and shall:

- (a) provide such information to Data Subjects regarding the Processing of their Covered Data in connection with the Customer's use of the Services as required under Applicable Data Protection Laws;
- (b) provide Data Subjects with any information made available to the Customer by Company in respect of Company's Processing of Administrative Data and Usage Data for the Controller Purposes;
- (c) ensure that any Covered Data provided by Customer to Company does not contain any Prohibited Personal Data;
- (d) to the extent required for the lawful Processing of Covered Data under Applicable Data Protection Laws, including Company's collection and Processing of Usage Data for the Controller Purposes, obtain any required consents or provide any required notices to Data Subjects in accordance with Applicable Data Protection Laws; and
- (e) implement appropriate technical and organisational measures to give effect to Data Subject rights under Applicable Data Protection Laws, and shall comply with requests from Data Subjects to exercise their rights under Applicable Data Protection Laws within the timeframe and subject to any exemptions prescribed in the Applicable Data Protection Laws.

5.2 Notwithstanding any other language in this DPA or the Agreement to the contrary, Customer acknowledges and agrees as follows: (i) that Company is not PCI compliant, and is under no obligation to become PCI compliant; (ii) that, other than to maintain any certifications the Company currently holds as of the effective date of this DPA, Company is under no obligation to pursue compliance for any additional industry standards or certifications at the request of Customer; and (iii) that, if and when a situation arises where Customer or its users are Processing Covered Data through the Services for which Company does not maintain the requisite compliance or certifications, Company will not be liable under this DPA or the Agreement for any such Processing, and Customer's sole remedy will be for Customer to cease the Processing of such Covered Data going forward (for the sake of clarity, Customer will not have the right to terminate this DPA or the Agreement in such a case, whether for convenience or for cause).

6. SUB-PROCESSORS

- 6.1 Company may Process Covered Data anywhere that Company, its Affiliates or its Sub-processors maintain facilities, subject to the remainder of this clause 6.
- 6.2 Customer grants Company general authorisation to engage any of its Affiliates and/or Sub-processors listed in Schedule 4 to this DPA, as amended in accordance with clause 6.4 (the “**Authorised Sub-processors**”), to Process Covered Data.
- 6.3 Company shall:
- (a) enter into a written agreement with each Authorised Sub-processor imposing data protection obligations that, in substance, are no less protective of Covered Data than Company’s obligations under this DPA; and
 - (b) remain liable for each Authorised Sub-processor’s compliance with the obligations under this DPA.
- 6.4 Company will provide Customer with at least thirty (30) days’ prior written notice of any proposed changes to the Authorised Sub-processors. Company may provide such notice in a variety of ways, including via blog post, notification within the Services, or any other reasonable means (or via email if Customer opts in to receive email notifications by subscribing to Company’s Trust Center updates (available at <https://trust.fireworks.ai>)). Any such change shall be deemed to automatically update Schedule 4 to this DPA and shall become effective without requiring a formal written amendment executed by both Parties. If Customer wishes to object to a proposed change to the Authorised Sub-processors (including, where applicable, when exercising its right to object under clause 9(a) of the SCCs), Customer must provide Company with written notice of such objection within ten (10) days after Company has provided notice of the proposed change (an “**Objection**”).
- 6.5 In the event Customer submits an Objection to Company, Company and Customer shall work together in good faith to find a mutually acceptable resolution to address such Objection. If Company and Customer are unable to reach a mutually acceptable resolution within a reasonable timeframe, which shall not exceed thirty (30) days, Customer may terminate the portion of the Agreement relating to the Services affected by such change by providing written notice to Company.
- 6.6 Company shall notify the Customer of any failure by the sub-processor to fulfil its obligations under that contract.

7. DATA SUBJECT RIGHTS REQUESTS

- 7.1 Company will notify Customer without undue delay of any request received by Company or any Authorised Sub-processor from a Data Subject to assert their rights in relation to Covered Data under Applicable Data Protection Laws (a “**Data Subject Request**”).

- 7.2 Other than in respect of any Processing of Administration Data and Usage Data for the Controller Purposes, Customer will have sole discretion in responding to the Data Subject Request, and Company shall not respond to the Data Subject Request, save that Company may advise the Data Subject that their request has been forwarded to Customer.
- 7.3 Company will provide Customer with reasonable assistance as necessary for Customer to fulfil its obligation under Applicable Data Protection Laws to respond to Data Subject Requests.

8. SECURITY

- 8.1 Company will implement and maintain appropriate technical and organisational data protection and security measures designed to ensure security of Covered Data, including, without limitation, protection against unauthorised or unlawful Processing and against accidental loss, destruction, or damage of or to Covered Data.
- 8.2 When assessing the appropriate level of security, Company shall take into account the nature, scope, context and purpose of the Processing as well as the risks that are presented by the Processing, in particular from accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to Covered Data.
- 8.3 Company will implement and maintain as a minimum standard the measures set out in Schedule 2.

9. INFORMATION AND AUDITS

- 9.1 Company shall notify Customer promptly if Company determines that it can no longer meet its obligations under Applicable Data Protection Laws.
- 9.2 Customer may take reasonable and appropriate steps to:
- (a) ensure that Company uses Covered Data in a manner consistent with Customer's obligations under Applicable Data Protection Laws; and
 - (b) upon reasonable notice, stop and remediate unauthorized use of Covered Data.
- 9.3 Customer may engage an independent third party auditor, at Customer's expense, to audit Company's compliance with this DPA (no more often than once annually, except in the event of a Security Incident). The Parties agree that all such audits will be conducted:
- (a) upon reasonable written notice to Company;
 - (b) only during Company's normal business hours; and
 - (c) in a manner that does not materially disrupt Company's business or operations.
- 9.4 With respect to any audits conducted in accordance with clause 9.3:

- (a) Company shall not be required to facilitate any such audit unless and until the Parties have agreed in writing the scope and timing of such audit; and
 - (b) Company shall not be required to give Customer access to information, facilities or systems to the extent doing so would cause Company to be in violation of confidentiality obligations owed to other customers or its legal obligations.
- 9.5 Customer shall promptly notify Company of any non-compliance discovered during an audit.
- 9.6 The results of the audit shall be Company's confidential information.
- 9.7 Company shall provide to Customer upon request, or may provide to Customer in response to any audit request submitted by Customer to Company, either of the following:
 - (a) data protection compliance certifications issued by a commonly accepted certification issuer which has been audited by a data security expert, or by a publicly certified auditing company; or
 - (b) such other documentation reasonably evidencing the implementation of the technical and organisational data security measures in accordance with industry standards.
- 9.8 If an audit requested by Customer is addressed in the documents or certification provided by Company in accordance with paragraph 9.7, and:
 - (a) the certification or documentation is dated within twelve (12) months of Customer's audit request; and
 - (b) Company confirms that there are no known material changes in the controls audited,

Customer agrees to accept that certification or documentation in lieu of conducting an audit of the controls covered by the relevant certification or documentation.

10. SECURITY INCIDENTS

- 10.1 Company shall notify Customer in writing without undue delay, and in any event within forty-eight (48) hours, after confirmation of any Security Incident.
- 10.2 Company shall take reasonable steps to contain, investigate, and mitigate any Security Incident, and shall send Customer timely information about the Security Incident, to the extent known to Company or as the information becomes available to Company, including, but not limited to, the nature of the Security Incident, the measures taken to mitigate or contain the Security Incident, and the status of the investigation.
- 10.3 Company shall provide reasonable assistance with Customer's investigation of any Security Incidents and any of Customer's obligations in relation to the Security Incident under Applicable Data Protection Laws, including any notification to Data Subjects or supervisory authorities.

- 10.4 Company's notification of or response to a Security Incident under this paragraph 10 shall not be construed as an acknowledgement by Company of any fault or liability with respect to the Security Incident.

11. TERM, DELETION AND RETURN

- 11.1 This DPA shall commence on the Effective Date and, notwithstanding any termination of the Agreement, will remain in effect until, and automatically expire upon, Company's deletion of all Covered Data as described in this DPA.

- 11.2 Company shall:

- (a) if requested to do so by Customer within thirty (30) days of expiry of the Agreement (the "**Retention Period**"), provide a copy of all Covered Data in such commonly used format as requested by Customer, or provide a self-service functionality allowing Customer to download such Covered Data; and
- (b) on expiry of the Retention Period, delete all copies of Covered Data Processed by Company or any Authorised Sub-processors, other than any Administration Data and Usage Data Processed for the Controller Purposes.

12. STANDARD CONTRACTUAL CLAUSES

- 12.1 The Standard Contractual Clauses shall, as further set out in Schedule 3, apply to the transfer of any Covered Data from Customer to Company, and form part of this DPA, to the extent that:

- (a) the European Data Protection Laws apply to Customer when making that transfer; or
- (b) the European Data Protection Laws that apply to Customer when making that transfer (the "**Exporter Data Protection Laws**") prohibit the transfer of Covered Data to Company under this DPA in the absence of a transfer mechanism implementing adequate safeguards in respect of the Processing of that Covered Data, and any one or more of the following applies:
 - (i) the relevant authority with jurisdiction over Customer's transfer of Covered Data under this DPA has not formally adopted standard data protection clauses or another transfer mechanism under the Exporter Data Protection Laws; or
 - (ii) entering into standard contractual clauses approved by the European Commission would reasonably satisfy any requirement under the Exporter Data Protection Laws to implement adequate safeguards in respect of that transfer.

- (c) the transfer is an "onward transfer" (as defined in the applicable module of the SCCs).

12.2 The Parties agree that execution of the Agreement shall have the same effect as signing the SCCs.

13. DEIDENTIFIED DATA

If Company receives Deidentified Data from or on behalf of Customer, Company shall:

- (a) take reasonable measures to ensure the information cannot be associated with a Data Subject;
- (b) publicly commit to Process the Deidentified Data solely in deidentified form and not to attempt to reidentify the information; and
- (c) contractually obligate any recipients of the Deidentified Data to comply with the foregoing requirements and Applicable Data Protection Laws.

14. GENERAL

14.1 The Parties hereby certify that they understand the requirements in this DPA and will comply with them.

14.2 The Parties agree that any limitations on either Party's liability under the Agreement shall apply to any claims, losses or damages arising in respect of a breach of this DPA and the SCCs.

14.3 The Parties agree to negotiate in good faith any amendments to this DPA as may be required in connection with changes in Applicable Data Protection Laws.

Schedule 1
DETAILS OF PROCESSING

A. List of Parties

	Customer	Company
Role	Data exporter	Data importer
Contact person	Customer contact information shall be as specified in the Agreement or, where applicable, in Customer's Administration Data associated with its use of the Services.	Chris Ulrich, Director of Security & Trust chris.ulrich@fireworks.ai
Activities relevant to the transfer	The receipt of the Services under the Agreement.	The performance of the Services under the Agreement.

B. Description of Processing

Categories of Data Subjects	• Customer's employees, consultants, contractors and/or agents • Employees, consultants, contractors and/or agents of Customer's affiliates
Categories of Personal Data	• <i>Contact information</i>: name, title, phone number, email address. • <i>Employment information</i>: business email address. • <i>Inputs</i>: information and content inputted into the Services by Customer's authorized users. • <i>Log data</i> • <i>Device data</i>: device identifiers (i.e., serial number), IP address of company device, installed applications on company device.
Special categories of Personal Data	• N/A unless otherwise agreed in writing by the Parties in accordance with Section 5.1(c).
Frequency of the transfer	• Continuous
Duration of the transfer	Company will process Customer's Personal Data as long as is required: • to provide the Services to Customer under the Agreement; • for Company's legitimate business needs; or • by applicable law or regulation.
Nature of the Processing	• Receiving data, including collection, accessing, retrieval, recording, and data entry

	• Protecting data, including restricting, encrypting, and security testing • Holding data, including storage, organization, and structuring • Erasing data, including destruction and deletion • Analyzing data, including product usage assessment • Sharing data, including disclosure to Sub-processors as permitted in this DPA
Purposes of the data transfer and further Processing	The delivery of a generative AI application programming interface including: • providing Customer's users with access to the Services; • generating outputs based on inputs provided by Customer's users of the Services; • resolving queries and support requests submitted by Customer.
Retention period	For the duration of the Agreement, unless earlier deletion is requested by the Company
Sub-processors	As set out in Schedule 4 to this DPA

C. Competent Supervisory Authority

The competent supervisory authority is: the Irish Data Protection Commissioner

Schedule 2
TECHNICAL AND ORGANIZATIONAL MEASURES

Technical and Organizational Security Measure	Details
Measures of pseudonymisation and encryption of personal data	Company has deployed secure methods and protocols for transmission of confidential or sensitive information over public networks. Databases housing sensitive customer data are encrypted at rest. Company uses only recommended secure cipher suites and protocols to encrypt all traffic in transit and Customer Data is securely encrypted with strong ciphers and configurations when at rest.
Measures for ensuring ongoing confidentiality, integrity, availability and resilience of processing systems and services	Company's customer agreements contain strict confidentiality obligations. Additionally, Company requires every downstream Sub-processor to sign confidentiality provisions that are substantially similar to those contained in Company's customer agreements. Company undergoes annual SOC 2 Type II audits and maintains ISO 27001, ISO 27701, and ISO 42001 certifications.
Measures for ensuring the ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident	Daily, weekly and monthly backups of production datastores are taken. Backups are periodically tested in accordance with information security and data management policies.
Processes for regularly testing, assessing and evaluating the effectiveness of technical and organizational measures in order to ensure the security of the processing	Company undergoes annual SOC 2 Type II audits and maintains ISO 27001, ISO 27701, and ISO 42001 certifications.
Measures for user identification and authorization	Company uses secure access protocols and processes and follows industry best-practices for authentication, including Multifactor Authentication and Single Sign On (SSO). All production access requires the use of two-factor authentication, and network infrastructure is securely configured to vendor and industry best practices to block all unnecessary ports, services, and unauthorized network traffic.
Measures for the protection of data during transmission	Company has deployed secure methods and protocols for transmission of confidential or sensitive information over public networks. Company uses only recommended secure cipher suites and protocols to encrypt all traffic in transit (i.e., TLS 1.2).
Measures for the protection of data during storage	Encryption-at-rest is automated using AWS's transparent disk encryption, which uses industry standard AES-256 encryption to secure all volume (disk) data. All keys are fully managed by AWS.

Measures for ensuring physical security of locations at which personal data are processed	All Company processing occurs in physical data centers that are managed by AWS, GCP, Oracle Cloud. https://aws.amazon.com/compliance/data-center/controls/
Measures for ensuring events logging	Company monitors access to applications, tools, and resources that process or store Customer Data, including cloud services. Monitoring of security logs is managed by the security and engineering teams. Log activities are investigated when necessary and escalated appropriately.
Measures for ensuring system configuration, including default configuration	Company adheres to a change management process to administer changes to the production environment for the Services, including changes to its underlying software, applications, and systems. All production changes are automated through CI/CD tools to ensure consistent configurations.
Measures for internal IT and IT security governance and management	The framework for Company's security program includes administrative, organizational, technical, and physical safeguards reasonably designed to protect the Services and confidentiality, integrity, and availability of Customer Data.
Measures for certification/assurance of processes and products	Company undergoes annual SOC 2 Type II audits and maintains ISO 27001, ISO 27701, and ISO 42001 certifications.
Measures for ensuring data minimisation	Company's Customers unilaterally determine what data they route through the Services. As such, Company operates on a shared responsibility model. Company gives Customers control over exactly what data enters the platform. Additionally, Company has built in self-service functionality to the Services that allows Customers to delete and suppress data at their discretion.
Measures for ensuring data quality	Company has a multi-tiered approach for ensuring data quality. These measures include: (i) unit testing to ensure quality of logic used to process API calls, (ii) database schema validation rules which execute against data before it is saved to our database, (iii) a schema-first API design using GraphQL and strong typing to enforce a strict contract between official clients and API resolvers. Company applies these measures across the board, both to ensure the quality of any Usage Data that Company collects and to ensure that the Company Platform is operating within expected parameters. Company ensures that data quality is maintained from the time a Customer sends Customer Data into the Services and until that Customer Data is presented or exported.
Measures for ensuring limited data retention	Customers unilaterally determine what data they route through the Services. As such, Company operates on a shared responsibility model. If a Customer is unable to delete Personal Data via the self-services functionality of the Services, then the Company deletes such Personal Data upon the Customer's written request, within the timeframe specified in this DPA and in accordance with Applicable Data

	Protection Law. All Personal Data is deleted from the Services following service termination.
Measures for ensuring accountability	Company has adopted measures for ensuring accountability, such as implementing data protection and information security policies across the business, recording and reporting Personal Data Breaches, and formally assigning roles and responsibilities for information security and data privacy functions. Additionally, the Company conducts regular third-party audits to ensure compliance with our privacy and security standards.
Measures for allowing data portability and ensuring erasure	Personal Data submitted to the Services by Customer may be deleted by the Customer or at the Customer's request. Personal Data is incidental to the Company's Services. Based on Privacy by Design and Data Minimization principles, Company severely limits the instances of Personal Data collection and processing within the Services. Most use cases for porting Personal Data from Company are not applicable. However, Company will respond to all requests for data porting in order to address Customer needs.
Technical and organizational measures of sub-processors	The Company enters into Data Processing Agreements with its Authorized Sub-Processors with data protection obligations substantially similar to those contained in this DPA.

Schedule 3
STANDARD CONTRACTUAL CLAUSES

1. EU SCCS

With respect to any transfers referred to in clause 12, the Standard Contractual Clauses shall be completed as follows:

- 1.1 Module Two (*controller to processor*) of the SCCs will apply.
- 1.2 Clause 7 of the Standard Contractual Clauses (*Docking Clause*) does not apply.
- 1.3 Option 2 of Clause 9(a) (*General written authorization*) shall apply, and the time period to be specified is determined in clause 6.4 of the DPA.
- 1.4 The option in Clause 11(a) of the Standard Contractual Clauses (*Independent dispute resolution body*) does not apply.
- 1.5 With regard to Clause 17 of the Standard Contractual Clauses (*Governing law*), the Parties agree that option 1 will apply and the governing law will be Irish law.
- 1.6 In Clause 18 of the Standard Contractual Clauses (*Choice of forum and jurisdiction*), the Parties submit themselves to the jurisdiction of the courts of Ireland.
- 1.7 For the Purpose of Annex I of the Standard Contractual Clauses, Schedule 1 of the DPA contains the specifications regarding the parties, the description of transfer, and the competent supervisory authority.
- 1.8 For the Purpose of Annex II of the Standard Contractual Clauses, Schedule 2 of the DPA contains the technical and organisational measures.

2. UK Addendum

- 2.1 This paragraph 2 (*UK Addendum*) shall apply to any transfer of Covered Data from Customer (as data exporter) to Company (as data importer), to the extent that:

- (a) the UK Data Protection Laws apply to Company when making that transfer; or
- (b) the transfer is an "onward transfer" as defined in the Approved Addendum.

- 2.2 As used in this paragraph 2:

"Approved Addendum" means the template addendum, version B.1.0 issued by the UK Information Commissioner under S119A(1) Data Protection Act 2018 and laid before the UK Parliament on 2 February 2022, as it may be revised according to Section 18 of the Approved Addendum.

"UK Data Protection Laws" means all laws relating to data protection, the processing of personal data, privacy and/or electronic communications in force from time to time in the UK, including the UK GDPR and the Data Protection Act 2018.

2.3 The Approved Addendum will form part of this DPA with respect to any transfers referred to in paragraph 2.1, and execution of this DPA shall have the same effect as signing the Approved Addendum.

2.4 The Approved Addendum shall be deemed completed as follows:

- (a) the "Addendum EU SCCs" shall refer to the SCCs as they are incorporated into this Agreement in accordance with clause 12 and this Schedule 3;
- (b) Table 1 of the Approved Addendum shall be completed with the details in paragraph A of Schedule 1;
- (c) the "Appendix Information" shall refer to the information set out in Schedule 1 and Schedule 2
- (d) for the purposes of Table 4 of the Approved Addendum, Company (as data importer) may end this DPA, to the extent the Approved Addendum applies, in accordance with Section 19 of the Approved Addendum; and
- (e) Section 16 of the Approved Addendum does not apply.

3. **Swiss addendum**

3.1 This Swiss Addendum will apply to any Processing of Covered Data that is subject to Swiss Data Protection Laws or to both Swiss Data Protection Laws and the EU GDPR.

3.2 **Interpretation of this Addendum**

- (a) Where this Addendum uses terms that are defined in the Standard Contractual Clauses, those terms will have the same meaning as in the Standard Contractual Clauses. In addition, the following terms have the following meanings:

"Addendum" means this addendum to the Clauses;

"Clauses" means the Standard Contractual Clauses as incorporated into this DPA in accordance with clause 12 and as further specified in this Schedule 3; and

"FDPIC" means the Federal Data Protection and Information Commissioner.

- (b) This Addendum shall be read and interpreted in a manner that is consistent with Swiss Data Protection Laws, and so that it fulfils the Parties' obligations under Article 16(2)(d) of the FADP.

- (c) This Addendum will not be interpreted in a way that conflicts with rights and obligations provided for in Swiss Data Protection Laws.
- (d) Any references to legislation (or specific provisions of legislation) means that legislation (or specific provision) as it may change over time. This includes where that legislation (or specific provision) has been consolidated, re-enacted and/or replaced after this Swiss Addendum has been entered into.
- (e) In relation to any Processing of Personal Data subject to Swiss Data Protection Laws or to both Swiss Data Protection Laws and the GDPR, this Addendum amends and supplements the Clauses to the extent necessary so they operate:
 - (i) for transfers made by the data exporter to the data importer, to the extent that Swiss Data Protection Laws apply to the data exporter's Processing when making that transfer; and
 - (ii) as standard data protection clauses approved, issued or recognised by the FDPIC for the purposes of Article 16(2)(d) of the FADP.

3.3 Hierarchy

In the event of a conflict or inconsistency between this Addendum and the provisions of the Clauses or other related agreements between the Parties, existing at the time this Addendum is agreed or entered into thereafter, the provisions which provide the most protection to Data Subjects will prevail.

3.4 Changes to the Clauses for transfers exclusively subject to Swiss Data Protection Laws

To the extent that the data exporter's Processing of Personal Data is exclusively subject to Swiss Data Protection Laws, or the transfer of Personal Data from a data exporter to a data importer under the Clauses is an "onward transfer" (as defined in the Clauses, as amended by the remainder of this paragraph 3.3(a)) the following amendments are made to the Clauses:

- (a) References to the "Clauses" or the "SCCs" mean this Swiss Addendum as it amends the SCCs.
- (b) Clause 6 Description of the transfer(s) is replaced with:

"The details of the transfer(s), and in particular the categories of Personal Data that are transferred and the purpose(s) for which they are transferred, are those specified in Schedule 1 of this DPA where Swiss Data Protection Laws apply to the data exporter's Processing when making that transfer."

- (c) References to "Regulation (EU) 2016/679" or "that Regulation" or "'GDPR" are replaced by "Swiss Data Protection Laws" and references to specific Article(s) of "Regulation (EU) 2016/679" or "GDPR" are replaced with the equivalent Article or Section of Swiss Data Protection Laws extent applicable.
- (d) References to Regulation (EU) 2018/1725 are removed.
- (e) References to the "European Union", "Union", "EU" and "EU Member State" are all replaced with "Switzerland".
- (f) Clause 13(a) and Part C of Annex I are not used; the "competent supervisory authority" is the FDPIC;
- (g) Clause 17 is replaced to state
- (h) "These Clauses are governed by the laws of Switzerland".
- (i) Clause 18 is replaced to state:

"Any dispute arising from these Clauses relating to Swiss Data Protection Laws will be resolved by the courts of Switzerland. A Data Subject may also bring legal proceedings against the data exporter and/or data importer before the courts of Switzerland in which he/she has his/her habitual residence. The Parties agree to submit themselves to the jurisdiction of such courts."

3.5 **Supplementary provisions for transfers of Personal data subject to both the GDPR and Swiss Data Protection Laws**

- (a) To the extent that the data exporter's Processing of Personal Data is subject to both Swiss Data Protection Laws and the GDPR, or the transfer of Personal Data from a data exporter to a data importer under the Clauses is an "onward transfer" under both the Clauses and the Clauses as amended by paragraph 3.3(c) of this Addendum:
 - (i) for the purposes of Clause 13(a) and Part C of Annex I:
 - (A) the FDPIC shall act as competent supervisory authority with respect to any transfers of Personal Data to the extent Swiss Data Protection Laws apply to the data exporter's Processing when making that transfer, or such transfer is an "onward transfer" as defined in the Clauses (as amended by paragraph 3.3 of this Addendum; and
 - (B) subject to the provisions of paragraph 2 of this Schedule 3 (UK Addendum), the supervisory authority identified in Schedule 1 shall act as competent supervisory authority with respect to any

transfers of Personal Data to the extent the GDPR applies to the data exporter's processing, or such transfer is an "onward transfer" as defined in the Clauses.

- (b) the terms "European Union", "Union", "EU", and "EU Member State" shall not be interpreted in a way that excludes the ability of Data Subjects in Switzerland bringing a claim in their place of habitual residence in accordance with Clause 18(c) of the Clauses; and

4. **Transfers under the laws of other jurisdictions**

- 4.1 With respect to any transfers of Personal Data referred to in clause 12.1(b) (each a "**Global Transfer**"), the SCCs shall not be interpreted in a way that conflicts with rights and obligations provided for in the Exporter Data Protection Laws.
- 4.2 For the purposes of any Global Transfers, the SCCs shall be deemed to be amended to the extent necessary so that they operate:
 - (a) for transfers made by the applicable data exporter to the data importer, to the extent the Exporter Data Protection Laws apply to that data exporter's Processing when making that transfer; and
 - (b) to provide appropriate safeguards for the transfers in accordance with the Exporter Data Protection Laws.
- 4.3 The amendments referred to in clause paragraph 4.2 include (without limitation) the following:
 - (a) references to the "GDPR" and to specific Articles of the GDPR are replaced with the equivalent provisions under the Exporter Data Protection Laws;
 - (b) reference to the "Union", "EU" and "EU Member State" are all replaced with reference to the jurisdiction in which the Exporter Data Protection Laws were issued (the "**Exporter Jurisdiction**");
 - (c) the "competent supervisory authority" shall be the applicable supervisory in the Exporter Jurisdiction; and
 - (d) Clauses 17 and 18 of the SCCs shall refer to the laws and courts of the Exporter Jurisdiction respectively.
- 4.4 Where, at any time during Company's Processing of Covered Data under this DPA, a transfer mechanism other than the SCCs is approved under the Exporter Data Protection Laws with respect to transfers of Covered Data by Customer to Company, the Parties shall promptly enter into a supplementary agreement that:

- (a) incorporates any standard data protection clauses or another transfer mechanism formally adopted by the relevant authority in the Exporter Jurisdiction;
- (b) incorporates the details of Processing set out in Schedule 1; and
- (c) shall, with respect to the transfer of Personal Data subject to the Exporter Data Protection Laws, take precedence over this DPA in the event of any conflict.

4.5 Where required under the Exporter Data Protection Laws, the relevant data exporter shall file a copy of the agreement entered into in accordance with paragraph 4.4 with the relevant national authority.

Schedule 4
LIST OF AUTHORISED SUB-PROCESSORS

The following is a list of Sub-processors currently authorised by Company to Process Covered Data, as referred to in clause 6.2 of this DPA. Company shall update this Schedule in accordance with clause 6.4.

Sub-processor	Processing Location(s)	Service / Purpose
Amazon Web Services	United States, Japan	Cloud infrastructure and service provider
Google Cloud Platform	United States	Cloud infrastructure and service provider
Oracle Cloud Infrastructure	United States, Japan, United Kingdom, Germany	Cloud infrastructure and service provider
Cloudflare	Closest data center to End User (global)	Content delivery network provider
Vercel	United States	Frontend hosting
Pylon	United States	Customer support platform
Linear	United States	Internal support collaboration
Discord Inc.	United States	Communication services
Slack	United States	Collaboration
Lambda Labs	United States	Infrastructure provider
Crusoe	United States, Iceland	Infrastructure provider
Voltage Park	United States	Infrastructure provider
Vultr	United States	Infrastructure provider
CoreWeave	United States	Infrastructure provider
Anthropic	United States	AI services